

BREYER, J., dissenting

that question, namely, the *Bivens* question? Why should the law treat differently a high-level official and the local constable where each has similarly violated the Constitution and where neither can successfully assert immunity or any other defense?

(2) *The constitutional right at issue.* I agree that this factor can make a difference, but only when the substance of the right is distinct. See, e.g., *Wilkie*, 551 U. S. 537 (land rights). But, for reasons I have already pointed out, there is no relevant difference between the rights at issue here and the rights at issue in our previous *Bivens* cases, namely, the rights to be free of unreasonable searches, invidious discrimination, and physical abuse in federal custody. See *supra*, at 169–170.

(3) *The generality or specificity of the individual action.* I should think that it is not the “generality or specificity” of an official action but rather the nature of the official action that matters. *Bivens* should apply to some generally applicable actions, such as actions taken deliberately to jail a large group of known-innocent people. And it should not apply to some highly specific actions, depending upon the nature of those actions.

(4) *The extent of judicial guidance.* This factor may be relevant to the existence of a constitutional violation or a qualified-immunity defense. Where judicial guidance is lacking, it is more likely that a constitutional violation is not clearly established. See *Anderson v. Creighton*, 483 U. S. 635, 640 (1987) (Officials are protected by qualified immunity unless “[t]he contours of the right [are] sufficiently clear that a reasonable official would understand that what he is doing violates that right”). But I do not see how, assuming the violation is clear, the presence or absence of “judicial guidance” is relevant to the existence of a damages remedy.

(5) *The statutory (or other) legal mandate under which the officer was operating.* This factor too may prove relevant to the question whether a constitutional violation exists